Fort Bend County District Court

Cause No. 2024-CV-0012

Amanda Hawkins, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-7-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant responds to Plaintiff's Original Petition as follows. Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence.

For further answer and by way of affirmative defense, Defendant asserts that Plaintiff's own negligence proximately caused or contributed to the occurrence made the basis of this suit. Plaintiff failed to keep a proper lookout, failed to yield the right of way when changing lanes, and failed to control speed in the manner a reasonably prudent person would under the same or similar circumstances. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by the percentage of responsibility attributed to Plaintiff, and Plaintiff may be barred entirely if that percentage exceeds fifty percent.

Defendant further asserts the affirmative defense of proportionate responsibility under Chapter 33, and requests that the trier of fact determine the percentage of respnosibility of each claimant, defendant, settling person, and responsible third party. Defendant further asserts that any damages claimed were caused by a sudden emergency not of Defendant's own making, and that Defendant is entitled to reduction of any award by any credit for settlement under Section 33.012.